

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
KHALID HARRIS,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY
DEPARTMENT OF CORRECTIONS, AND JOHN OR
JANE DOE 1-10,

Defendants.
-----X

Index No.:

Purchased:

Plaintiff designates

Bronx County as the place of trial

The basis of the venue is where the
tort arose

SUMMONS

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
October 8, 2020



SIM & DEPAOLA, LLP

By: Sameer Nath, Esq.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard, Suite 201

Bayside, New York 11361

(718) 281-0400

TO: **CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

NEW YORK CITY DEPARTMENT OF CORRECTIONS

11-11 Hazen Street
Queens, New York 11370

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
KHALID HARRIS,

Plaintiff,

Index No.:

Purchased:

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, NEW YORK CITY
DEPARTMENT OF CORRECTIONS, AND JOHN OR
JANE DOE 1-10,

Defendants.
-----X

Plaintiff, **KHALID HARRIS**, by his attorneys, **SIM & DEPAOLA, LLP**, for his
complaint against the above Defendants, alleges as follows:

1. The following claims arise from an incident that occurred on that occurred on a New York City Department of Corrections transport bus traveling from the Bronx Supreme Courthouse Criminal Term to the Vernon C. Bain Center ("VCBC"), where Plaintiff, Khalid Harris, was an incarcerated inmate. On, or about, May 13, 2019, in the County of Bronx, City and State of New York, Plaintiff was caused to sustain deep lacerations due to being slashed him in the face with a razor sharp scalpel wrapped in electric tape, requiring seventy-five (75) surgical sutures to his face and further causing severe facial disfigurement and scarring substantial pain and suffering, as well as significant emotional and psychological injuries.
2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

Parties

3. Plaintiff, Khalid Harris ("Mr. Harris"), resides within the County of Douglas, City and State of Georgia.

4. Defendant, City of New York ("City"), is a municipal corporation duly organized under the laws of the State of New York.

5. Defendant, New York City Department of Corrections ("DOC"), is a wholly owned subsidiary which is owned, operated, managed, maintained and controlled by the Defendant City.

6. At all times relevant hereto, Defendant City, acting through the New York City Department of Corrections ("DOC") was responsible for the policy, practice, supervision, implementation, and conduct of all DOC matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all DOC personnel, including correction officers and supervisory officers, as well as the individually named Correctional officer defendants herein.

7. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the DOC, and for ensuring that the DOC personnel obey the laws of the United States and the State of New York.

8. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were correctional officers, supervisors, policy makers and/or officials employed by the DOC. At this time, Plaintiff does not know the true identities and/or tax registry numbers of Defendants John or Jane Does 1 through 10, as such knowledge is within the exclusive possession of defendants.

9. At all times relevant herein, Defendants John or Jane Does 1 through 10 were acting as agents, servants and employees of the City of New York and the DOC. Defendants John or Jane Does 1 through 10 are being sued in their individual and official capacities.

10. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

11. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.

12. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.

13. This action has been commenced within one year and ninety days from the relevant accrual dates.

Factual Charges

14. On May 13, 2019, at approximately 5:30 p.m., Plaintiff was an incarcerated inmate at the Vernon C. Bain Center (VCBC).

15. On said date and time, Plaintiff was being transported on a DOC bus from the Bronx Supreme Court Criminal Term back to VCBC.

16. An inmate on the DOC bus slashed Plaintiff across the face with razor sharp scalpel wrapped in electrical tape.

17. Defendant Corrections Officers had improperly secured the inmate and thus negligently allowed the inmate to attack Plaintiff.

18. Defendant Corrections Officers owed Plaintiff a duty as an inmate in their correctional custody to safeguard him from foreseeable assault from other inmates and to use reasonable care for his safety.

19. Defendant Corrections Officers had actual or constructive knowledge of the danger the improperly restrained inmate posed to Plaintiff.

20. Due to Defendant Corrections Officers failure to follow DOC's own policies and procedures by properly restraining all inmates being transported on DOC buses, Plaintiff was grievously injured.

21. Due to Defendant Corrections Officers failure to follow DOC's policies and procedures by failing to properly inspect inmates to assure they have no weapons in their possession Plaintiff was grievously injured.

22. The assault against Plaintiff resulted in bleeding and deep laceration to Plaintiff's face from the corner of his mouth to his ear which required seventy-five (75) surgical sutures to the right cheek of his face, causing permanent, disfiguring facial scarring and further requiring emergency medical treatment.

23. All injuries Plaintiff sustained were in the presence of Defendant Corrections Officers.

24. Defendant Corrections Officers failed to properly supervise and control the actions of inmates who they had information had a propensity for attacking other inmates.

25. Defendant Corrections Officers failed to properly supervise and control the actions of inmates.

26. At all times the Defendant Corrections Officers were acting under color of state law in the scope of their employment as City of New York corrections officers.

27. At no time during this incident did Plaintiff commit any crime or violation of the law nor provoke the attack in any manner.

28. Defendants, including unidentified correction officers, failed to follow its own policies and the policies of the State of New York and the Constitution of the United States designed to address the risks to Plaintiff.

29. Defendants, including unidentified correction officers, were reckless, careless, and or negligent causing Plaintiff to suffer a physical injury.

30. Defendants, including unidentified correction officers, was negligent in providing adequate security, protection and reasonable care to Plaintiff.

31. Defendants have displayed a pattern and practice of failing to properly treat inmates under their care and supervision.

32. During all of the events described, the Defendants, including unidentified correction officers, JOHN OR JANE DOE 1-10, acted maliciously and with intent to injure Plaintiff.

33. At all times relevant hereto, Defendants, including unidentified correction officers, JOHN OR JANE DOE 1-10, were involved in the decision to allow inmate to assault Plaintiff without any legal reason or justification or failed to intervene when they observed an inmate assault Plaintiff without any legal reason or justification.

34. Upon information and belief, the DOC and the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the DOC that resulted in Plaintiff's injury without any legal reason or justification.

35. Upon information and belief, the DOC and the City of New York, and their respective policy and decision makers and supervisors have failed to provide adequate training in the identification of legal reason or justification for confiscating individual's property.

36. The instant injury to Plaintiff without any legal reason was so egregious as to amount to the deliberate indifference by the policy and decision makers within the DOC and City of New York, because the need for enhanced training and supervision is obvious due to the clear lack of any legal reason or justification for confiscating individual's property.

37. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the DOC and City of New York are within the exclusive knowledge of Defendants.

38. Upon information and belief, the personnel files and records of the individual officers and/or medical professional involved in Plaintiff's confiscation and treatment will reveal a history of Constitutional violations that will indicate that Defendants City and/or DOC knew, or should have known that the individual officers and/or medical professionals were unfit for employment as DOC correctional officers and would be likely to commit Constitutional violations similar to the violations that were committed against Mr. Harris.

39. As a direct and proximate result of the acts of Defendants, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

Assault & Battery Under
New York State Law

40. The above paragraphs are here incorporated by reference as though fully set forth.

41. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

42. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

43. Defendants City and DOC, as employers of the individual defendants, are responsible for their wrongdoing under the doctrine of *respondeat superior*.

44. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

Unconstitutional Conditions of Confinement Under
42 U.S.C. § 1983 Against Individual Defendants

45. The above paragraphs are here incorporated by reference as though fully set forth.

46. Plaintiff had a serious medical condition.

47. Defendants were aware of Plaintiff's condition.

48. Defendants knew of and disregarded an excessive risk to Plaintiff's health or safety.

49. Defendants acted intentionally to impose the condition, or they recklessly failed to act with reasonable care to mitigate the risk that the condition posed to Plaintiff, despite the fact that defendants knew, or should have known that Plaintiff's condition posed an excessive risk to Plaintiff's health or safety.

50. Defendants acted intentionally to exacerbate Plaintiff's condition.

51. Defendants knew or should have known that their conduct posed an excessive risk to Plaintiff's health or safety.

52. Plaintiff was treated with deliberate indifference by defendants and/or Plaintiff's condition was intentionally exacerbated by defendants.

53. Accordingly, defendants' actions violated Plaintiff's rights under the Fourth, Eighth and Fourteenth Amendments to the United States Constitution.

54. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION**Unconstitutional Conditions of Confinement Under
New York State Law**

55. The above paragraphs are here incorporated by reference as though fully set forth.
56. Plaintiff had a serious medical condition.
57. Defendants were aware of Plaintiff's condition.
58. Defendants knew of and disregarded an excessive risk to Plaintiff's health or safety.
59. Defendants acted intentionally to impose the condition, or they recklessly failed to act with reasonable care to mitigate the risk that the condition posed to Plaintiff, despite the fact that defendants knew, or should have known that Plaintiff's condition posed an excessive risk to Plaintiff's health or safety.
60. Defendants acted intentionally to exacerbate Plaintiff's condition.
61. Defendants knew or should have known that their conduct posed an excessive risk to Plaintiff's health or safety.
62. Plaintiff was treated with deliberate indifference by defendants and/or Plaintiff's condition was intentionally exacerbated by defendants.
63. Accordingly, defendants' actions violated Plaintiff's rights under the New York State Constitution and Common Law.
64. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION**Deliberate Indifference to Serious Medical Needs Under
42 U.S.C. § 1983 Against Individual Defendants**

65. The above paragraphs are here incorporated by reference as though fully set forth.
66. Plaintiff had an objectively serious medical condition.

67. Defendants were aware of Plaintiff's serious medical condition.
68. Defendants acted intentionally to impose the condition, or they recklessly failed to act with reasonable care to mitigate the risk that condition posed to Plaintiff, despite the fact that defendants knew, or should have known that Plaintiff's condition posed an excessive risk to Plaintiff's health or safety.
69. Defendants acted intentionally to exacerbate Plaintiff's condition.
70. Defendants knew or should have known that their conduct posed an excessive risk to Plaintiff's health or safety.
71. Plaintiff was treated with deliberate indifference by defendants.
72. Accordingly, defendants' actions violated Plaintiff's rights under the Fourth, Eighth and Fourteenth Amendments to the United States Constitution.
73. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Negligence and/or Gross Negligence Under
New York State law

74. The above paragraphs are here incorporated by reference as though fully set forth.
75. Defendants owed a duty of care to Plaintiff to exercise reasonable care under the circumstances and to ensure his access to proper medical care and treatment.
76. Defendants breached that duty of care by negligently, recklessly or willfully engaging in conduct that denied Plaintiff access to adequate medical care and treatment.
77. Defendants knew or should have known that their conduct posed a danger to Plaintiff's health or safety.
78. It was reasonably foreseeable that defendants' breach would cause Plaintiff to sustain

injuries.

79. Defendants City and DOC, as employers of the individually named defendants, are responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

81. The above paragraphs are here incorporated by reference as though fully set forth.

82. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

83. Defendants City and DOC, as employers of the individual Defendants, are responsible for their wrongdoing under the doctrine of *respondeat superior*.

84. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

85. The above paragraphs are here incorporated by reference as though fully set forth.

86. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

87. Accordingly, the Defendants who failed to intervene violated the Fourth, Eighth and Fourteenth Amendments.

88. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention & Supervision Under
New York State Law

89. The above paragraphs are here incorporated by reference as though fully set forth.

90. Defendants City and DOC owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.

91. Defendants City and DOC breached that duty of care.

92. Defendants City and DOC placed defendants in a position where they could inflict foreseeable harm.

93. Defendants City and DOC knew or reasonably should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

94. Defendants City and DOC failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

95. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendants City

96. The above paragraphs are here incorporated by reference as though fully set forth.

97. Defendants City maintained a policy, custom or practice that caused Plaintiff to be deprived of his Constitutional right to free from illegal searches and seizures.

98. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.

99. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate indifference towards the rights of those who come into contact with Defendant City's employees.

100. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced supervision and training is obvious and therefore tantamount to a display of deliberate indifference by Defendant City and its policymakers towards the rights of individuals who come into contact with defendant City's employees.

101. Defendant City's conduct violated Plaintiff's rights under the Fourth, Eighth and Fourteenth Amendments to the United States Constitution.

102. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- n) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988 and New York Civil Rights Law § 28;

Together with the costs and disbursements of this action.

Dated: Bayside, New York
October 8, 2020



SIM & DEPAOLA, LLP

By: Sameer Nath, Esq.

Attorneys for Plaintiff

4240 Bell Blvd – Ste 201

Bayside, NY 11361

T: (718) 281-0400

F: (718) 631-2700

ATTORNEY VERIFICATION

I, **SAMEER NATH**, an attorney admitted to practice in the courts of New York State, state that I am associated with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. The reason this verification is made by myself and not by Plaintiff, is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
October 8, 2020


SAMEER NATH, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

KHALID HARRIS,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF CORRECTIONS, AND
JOHN OR JANE DOE 1-10,

Defendants.

SUMMONS & VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

By: Sameer Nath, Esq.
Attorneys for Plaintiff(s)
42-40 Bell Boulevard
Suite 201
Bayside, New York 11361
Tel. (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.
Dated

Attorney(s) for